NORTH CAROLINA
WAKE COUNTY
IN THE GENERAL COURT OF JUSTICE
SUPERIOR COURT DIVISION

Case No. 24CV040622-910

JEFFERSON GRIFFIN,
Petitioner,

v.

NORTH CAROLINA STATE BOARD OF ELECTIONS,
Respondent.

PETITIONER'S BRIEF

Craig D. Schauer
N.C. State Bar No. 41571
cschauer@dowlingfirm.com
W. Michael Dowling
N.C. State Bar No. 42790
mike@dowlingfirm.com
Troy D. Shelton
N.C. State Bar No. 48070
tshelton@dowlingfirm.com
DOWLING PLLC
3801 Lake Boone Trail, Suite 260
Raleigh, North Carolina 27607
Telephone: (919) 529-3351

Counsel for the Honorable Jefferson Griffin

Philip R. Thomas
N.C. State Bar No. 53751
pthomas@chalmersadams.com
Chalmers, Adams, Backer & Kaufman, PLLC
204 N Person Street
Raleigh, North Carolina 27601
Telephone: (919) 670-5185

TABLE OF CONTENTS

INTRODUCTION 1

STATEMENT OF THE FACTS 2

A. The Election Protests 2

B. Further Proceedings 4

ARGUMENT 6

I. The Posture of This Case Is No Different Than *James v. Bartlett*. 7

II. Overseas Voters Who Did Not Provide Photo Identification Cannot Cast a Ballot in State Elections. 11

A. Article 21A, which governs overseas absentee voters, incorporates Article 20's requirements for absentee voters. 11

B. Nothing in Article 21A excuses overseas voters from providing photo identification. 14

C. The fact that the Board issued a rule excusing overseas voters from providing photo identification does not immunize the Board's decision from judicial review. 16

D. Federal law has no bearing on the photo-identification requirement. 18

III. The State Board Manufactured Procedural Defects. 18

A. The protests should not have been filed as voter challenges. 18

B. The Board wrongly dismissed the protests for lack of service. 20

C. Judge Griffin timely filed his protests. 23

IV. No Other Federal Statute Bars the Protests. 25

V. All Protests Filed by Judge Griffin Comport with Substantive Due Process. 25

A. The Anderson-Burdick test. 26

B. The protests do not seek to impose severe limitations on voting. 26

C. The laws at issue are tailored to compelling state interests. 29

CONCLUSION 30

INTRODUCTION

The State Board is an administrative agency that has broken the law for decades, while refusing to correct its errors. This lawlessness was brought to the Board's attention back in 2023 and again in 2024, both before the 2024 general election, but the Board refused to follow the law. Now those chickens have come home to roost. In the 2024 general election, the Board's errors changed the outcome of the election for the open seat on the North Carolina Supreme Court. When those errors were raised again in valid election protests, the Board then claimed that it was too late to fix its law-breaking.

At bottom, this case presents a fundamental question: who decides our election laws? Is it the people and their elected representatives, or the unelected bureaucrats sitting on the State Board of Elections? If the Board gets its way, then it is the real sovereign here. It can ignore the election statutes and constitutional provisions, while administering an election however it wants.

Judge Griffin, currently a judge of the North Carolina Court of Appeals and candidate for Seat 6 on the Supreme Court of North Carolina, seeks to restore the supremacy of the democratic process and the preeminence of the rule of law. He filed election protests across all North Carolina counties to challenge the State Board's lawless administration of his electoral contest.

With this petition, Judge Griffin seeks judicial review of the Board's rejection of protests he filed concerning absentee ballots cast by people who failed to provide photo identification with their ballots. Thousands of overseas voters cast ballots without providing their photo identification. But state law requires all voters to provide photo identification to vote; overseas voters casting absentee ballots do not get special treatment. The Board broke the law by counting these ballots.

In response to Judge Griffin's protests, the State Board and the opposing candidate, Justice Allison Riggs, have claimed that Judge Griffin is seeking a retroactive change in the election laws. That flatly mischaracterizes the timeline. For instance, photo identification has been required for absentee voting since at least 2018. The laws that should have governed this election were, therefore, established long before this election. The State Board simply chose to break the law.

But the State Board of Elections is no super-legislature. It doesn't get to make up its own rules, disregard state statutes, or rewrite the state constitution. Rather, the Board was required to discount votes that were cast in violation of state law. Like the Supreme Court explained twenty years ago, in an identical situation, "[t]o permit unlawful votes to be counted along with lawful ballots in contested elections effectively 'disenfranchises' those voters who cast legal ballots, at least where the counting of unlawful votes determines an election's outcome." *James v. Bartlett*, 359 N.C. 260, 270, 607 S.E.2d 638, 644 (2005).

STATEMENT OF THE FACTS

On Election Day in 2024, Judge Griffin maintained a sizeable lead over Justice Riggs. However, as ballots continued to trickle in over the next week, Justice Riggs took the lead. As of today, Justice Riggs leads by 734 votes.

A. The Election Protests

On 19 November 2024, Judge Griffin filed election protests in each of North Carolina's 100 counties. In total, Judge Griffin filed six categories of election protests. Three categories have been resolved, and there is no ongoing litigation over these three categories. But Judge

Griffin has filed three independent petitions for judicial review for three other categories of protests that the State Board has rejected.

For context, the three categories of election protests for which Judge Griffin seeks review are described briefly below, as well as the likely impact of each on the outcome of the election. Election protests matter when they change the outcome of an election. *Bouvier v. Porter*, 386 N.C. 1, 4, 900 S.E.2d 838, 843 (2024) (discussing N.C. Gen. Stat. § 163-182.12).

No Photo ID. It's well known that photo identification is required for all voters, both those voting absentee ballots and those voting in person. N.C. Gen. Stat. § 163-230.1(a)(4), (b)(4), (e)(3), (f1) (absentee ballots); *id.* § 163-166.16(a) (in-person voting); N.C. Const. art. VI, §§ 2(4), 3(2) (same). Yet the State Board decided not to require photo identification for absentee ballots cast by voters who live overseas. State law, however, doesn't exempt overseas voters from the photo-identification requirement.

In the Supreme Court contest, 5,509 such ballots were unlawfully cast. Judge Griffin anticipates that, if these unlawful ballots are excluded, he will win the election. An example of this type of protest can be found in the Administrative Record. (A.R. pp 349-58.)

Never Residents. Our state constitution limits voters for state offices to people who actually reside in North Carolina. N.C. Const. art. VI, § 2(1); *Bouvier*, 386 N.C. at 4 n.2, 900 S.E.2d at 843 n.2 (explaining that "nonresidents" are "categorically ineligible to vote" for state offices). Nonetheless, the State Board allowed approximately 267 people to vote in the protested election who have never resided in North Carolina or anywhere else in the United States. These voters self-identified themselves as such, stating on a form "I am a U.S. citizen living outside the country, and I have never lived in the United States." Counting these ballots is unlawful. An example of this type of protest can be found in the Administrative Record. (A.R. pp 288-303.)

It is unknown whether this category of election protests will affect the outcome of the election, standing alone. As it stands, fewer than 300 Never Residents voted in the protested election, and the current margin between the candidates is over 700 votes. However, if the other election protests were to reduce the vote margin between the candidates, then it's possible that the issue of Never Resident voting could become outcome-determinative.

Incomplete Voter Registrations. Since 2004, the General Assembly has required someone registering to vote to provide his drivers license or last four digits of his social security number on his voter registration application. N.C. Sess. Law 2003-226, § 9 (codified as amended at N.C. Gen. Stat. § 163-82.4). However, until December 2023, the State Board of Elections chose not to enforce this law. And even when the Board admitted its decades of lawlessness, it refused to cure the improper registrations and would only require the information from new registrants. In the race for Seat 6 of the Supreme Court, over 60,000 people cast ballots, even though they had never provided the statutorily required information to become lawful voter registrants. Under state law, unless someone is lawfully registered to vote, he cannot vote. N.C. Const. art. VI, § 3(1); N.C. Gen. Stat. § 163-82.1(a).

A sample of the protest for incomplete voter registrations can be found in the Administrative Record. (A.R. pp 304-48.) Judge Griffin anticipates that, if these unlawful ballots are excluded, then he will have won the contest.

B. Further Proceedings

After Judge Griffin filed his protests, the State Board took over jurisdiction from the county boards for the three categories of protests just described. (A.R. p 5366.) The parties filed briefs, then the State Board heard arguments on the protests on 11 December 2024. On 13 December 2024, the Board emailed and mailed the parties a copy of its final decision on these

categories of protests. (A.R. pp 5368-410). This decision consolidated the Board's treatment of a number of the protests. The decision is a final decision as to hundreds of protests. The protests dismissed by the State Board's order are included in the Administrative Record. (A.R. pp 1-3562.)

On 18 December 2024, Judge Griffin petitioned the North Carolina Supreme Court for a writ of prohibition, along with a motion for a temporary stay. On 19 December 2024, the State Board removed the petition from the Supreme Court to federal district court. On 20 December 2024, Judge Griffin filed three notices of appeal and petitions for judicial review in this Court. Each filing encompassed one of the three categories of election protests rejected by the Board. That same day, the Board also removed these proceedings from this Court to federal court.

In federal district court, Chief Judge Richard Myers ordered the Board to show cause why the cases should be in federal court at all. The parties then filed competing briefs on the propriety of the Board's removal of all the actions. On the evening of 6 January 2025, Judge Myers remanded all the cases back to state court, including this petition for judicial review back to this Court.

On 7 January 2025, the Supreme Court granted the motion to stay certification and requested expedited briefing on the writ of prohibition. On 22 January 2025, the Supreme Court dismissed Judge Griffin's petition for a writ of prohibition so that this Court may proceed with the petitions for judicial review filed by Judge Griffin. The Supreme Court ordered this Court "to proceed expeditiously." Order at 3, *Griffin v. State Bd. of Elections* (No. 320P24) (N.C. Jan. 22, 2025), available at https://appellate.nccourts.org/orders.php?t=P&court=l&id=444272&pdf=l&a=0&docket=l&dev=l. The Supreme Court also stayed certification of the election while this Court acts, and until "any appeals from [this Court's] rulings have been exhausted." *Id.*

The Board filed the administrative record on 24 January 2025.

ARGUMENT

The State Board intends to count unlawful ballots and thereby change the outcome of the election.

To start, this case is not the first of its kind. Twenty years ago, election officials instructed certain voters to vote in a manner that was illegal. The election-law violation was raised in election protests that were ultimately brought before the North Carolina Supreme Court. In that case, *James v. Bartlett*, a unanimous Supreme Court held that the State Board had violated the election laws and, in doing so, altered the outcome of the election. The Supreme Court ordered the illegal votes to be discounted.

Next, the merits of the protests challenging ballots cast by overseas voters who did not provide photo identification are addressed, as well as the errors committed by the State Board. All the issues presented in this petition are questions of law that are reviewed de novo. *See, e.g., Appeal of Ramseur*, 120 N.C. App. 521, 523-24, 463 S.E.2d 254, 256 (1995). As the State Board agreed, these protests present "legal questions of statewide significance." (A.R. p 5371.)

After addressing the merits, the brief addresses the State Board's attempt to dismiss the protests, on alternative grounds, for procedural defaults. But the Board had no justification for trying to disqualify Judge Griffin from challenging the election results. Judge Griffin's protests complied with all the relevant procedural requirements.

Next, Justice Riggs raised federal laws that, she has argued, require the State Board to count illegal ballots and declare her the winner of this race. But federal law has nothing to say

about the issues in Judge Griffin's protests. It's why Judge Myers sent the removed cases back to state court.

Finally, the State Board reasoned in its order that, under the Fourteenth Amendment, it is too late to correct the legal defects in this election. As explained below, it is not too late to demand that elections law be followed.

I. The Posture of This Case Is No Different Than *James v. Bartlett*.

This case is not the first time that an election protest has caught the State Board breaking the law and counting unlawful ballots. The last time this happened, the Supreme Court ordered the State Board to exclude 11,310 ballots cast unlawfully.

In 2004, the general election resulted in two disputed electoral contests, a council of state race and a county commissioner race. *James v. Bartlett*, 359 N.C. 260, 262, 607 S.E.2d 638, 639 (2005). In total, there were three separate actions, all challenging the same error by the State Board of Elections. *Id.* at 262-63, 607 S.E.2d at 639-40. The first two actions were election protests filed by the Republican candidates, which the State Board of Elections rejected. *Id.* at 262 n.2, 607 S.E.2d at 639 n.2. That action was then appealed to Wake County superior court. *Id.* The third action was a declaratory judgment action filed by the Republican candidates, also in Wake County superior court, which was consolidated and heard in that court with the election protests. *Id.* The superior court rejected all the actions, and an appeal quickly arrived at the Supreme Court. *Id.*

On the merits, the challenges all focused on one legal question: "whether a provisional ballot cast on election day at a precinct other than the voter's correct precinct of residence may be lawfully counted in final election tallies." *Id.* at 263, 607 S.E.2d at 640. The Republican candidates argued that the State Board's allowance of out-of-precinct voting violated the state

constitution, so these unlawful ballots had to be excluded. *Id.* at 263 n.2, 266, 607 S.E.2d at 640 n.2, 642. The challenge affected 11,310 ballots cast by voters outside of their precincts. *Id.* at 263, 607 S.E.2d at 640.

In response to these challenges, the State Board leveled numerous accusations against the Republican candidates. The Board accused the Republican candidates of trying to change the rules after an election: "Plainly, plaintiffs are seeking to change the rules for an election that has already been conducted. Candidates and voters have already relied on the statutes of the General Assembly as implemented by the State Board …. This would in essence cause the retroactive disqualification of thousands of voters whose ballots were partially or wholly counted by the county boards of elections …." Br. for Defs.-Appellees at 41-42, *James*, 359 N.C. 260 (No. 602PA04-2), available at https://www.ncappellatecourts.org/show-file.php?document id=93938. The Board argued that the election challenges should have been "brought before the November election." *Id.* at 43.

The 2004 general election was not the first time that the State Board had counted out-of-precinct votes. As the Board argued, it had also counted out-of-precinct ballots two times before the general election, in the first and second primary elections of 2004, in which the protesting-candidates had also run for election. *Id.* at 5, 41, 45. The Board argued that out-of-precinct ballots "were in fact cast and counted in the primary held on July 20, 2004, and in the second primary held on August 17, 2004. [The protestors], all of whom were candidates in this year's elections and all of whom were elected officials, had no excuse for not knowing until November 15, 2004, that out-of-precinct provisional ballots might be cast and counted." *Id.* at 45.

The Board concluded its brief with this assertion: "[The protestors] should not be allowed to change the rules for the election after the election is over, thereby causing thousands of

ballots-all of which were cast by voters in reliance on the representations of elections officials- to be thrown out. Plaintiffs' failure to press their claims in a timely manner forecloses the relief plaintiffs seek- to alter the rules of and amend the official returns of the election." *Id.* at 46. In other words, the Board argued, the election rules existing at the time of the election permitted out-of-precinct voting. *See id.*

The Board directed its argument about timeliness at the protestors' declaratory judgment action. Br. for Defs.-Appellees at 41, *James*, 359 N.C. 260 (No. 602PA04-2), available at https://www.ncappellatecourts.org/show-file.php?document id=93938. Indeed, that was the heading of the argument: "Plaintiffs failed to bring their declaratory judgment action in a timely manner." *Id.* Notably, the Board never accused the protestors of filing their election protests too late, since the protestors complied with the deadline in the election-protest statute.

The Board further argued that it would be unfair, and a due process violation, for these ballots to be excluded, since the Board had told these voters that they could vote out of precinct: "It would be grossly unfair to those voters to allow them to cast their ballots under one set of rules, and then to subtract their votes after the election under a new set of rules-all without notice to the affected voters." *Id.* at 42. Last, the Board argued that, before the election, it had issued an administrative rule that allowed out-of-precinct voting, so no one could challenge the Board's counting of these ballots after the election. *Id.* at 45.

Federal law was also put into play. A group of amici curiae argued that the Republican candidates' argument, if accepted, would violate the federal Voting Rights Act, since a disproportionate number of out-of-precinct votes were cast by racial minorities. Br. of Amici Curiae in Support of Defs. at 20-27, *James*, 359 N.C. 260 (No. 602PA04-2), available at https://www.ncappellatecourts.org/show-file.php?document id=93940.

The Supreme Court rejected all these arguments and ordered the State Board to exclude the out-of-precinct ballots from the vote tallies. As to the constitutionality of out-of-precinct voting, the Court avoided the question by interpreting existing state statutes to forbid out-of-precinct voting. *James*, 359 N.C. at 266-69, 607 S.E.2d at 642-44. Thus, the Court concluded, "the State Board of Elections improperly counted provisional ballots cast outside voters' precincts of residence on election day in the 2004 general election." *Id.* at 269, 607 S.E.2d at 644.

That left only the remedial question, which the Supreme Court forcefully answered. Although the Court thought it was "unfortunate that the statutorily unauthorized actions of the State Board of Elections denied thousands of citizens the right to vote on election day," these unlawful ballots had to be excluded. *Id.* Indeed, it would have been unconstitutional for the Court to count unlawful ballots with lawful ballots: "To permit unlawful votes to be counted along with lawful ballots in contested elections effectively 'disenfranchises' those voters who cast legal ballots, at least where the counting of unlawful votes determines an election's outcome." *Id.* at 270, 607 S.E.2d at 644. The unanimous justices explained that "we cannot allow our reluctance to order the discounting of ballots to cause us to shirk our responsibility to 'say what the law is.'" *Id.* (quoting *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 177 (1803)).

The case before this Court is no different. This case comes to the Court in the same posture as *James*. Judge Griffin is following the statutory procedure to have his election protests resolved in the way that the General Assembly has asked. The State Board is making the same procedural arguments rejected by *James*. And on the merits, the Board's arguments fail. Because the Board's legal violations have likely changed the election's outcome, the remedy is to "order the discounting of ballots." *Id.*

II. Overseas Voters Who Did Not Provide Photo Identification Cannot Cast a Ballot in State Elections.

The category of protests at issue in this proceeding involves ballots cast by overseas voters. State law requires overseas voters to submit photo identification along with their absentee ballots, just like domestic voters. But the State Board decided to accept overseas absentee ballots without accompanying identification, in violation of state law.

A. Article 21A, which governs overseas absentee voters, incorporates Article 20's requirements for absentee voters.

Subchapter VII of Chapter 163 of the General Statutes contains the requirements for all types of absentee-ballot voting in North Carolina. Article 20 of that subchapter sets out the general rules for absentee voting. *See* N.C. Gen. Stat. §§ 163-226 to -239. Article 21A, which is called the Uniform Military and Overseas Voters Act or UMOVA, layers on additional rules for absentee voting by military and overseas voters. *See id.* §§ 163-258.1 to -258.31. The general absentee voting provisions of Article 20 apply to overseas absentee voting under Article 21A, and not vice versa. Section 163-239 states, "Except as otherwise provided therein, Article 21A of this Chapter [for overseas absentee voting] shall not apply to or modify the provisions of this Article [20]." In other words, Article 21A does not exempt overseas voters from the photo-identification requirement of Article 20 just because Article 21A doesn't mention photo-identification.

One of the key provisions of Article 20 is the requirement of photo identification for absentee voting. N.C. Gen. Stat. § 163-230.1(a)(4), (b)(4), (e)(3), (f1). These provisions equalize the burden of voting: both in-person voters and absentee voters must show photo identification to cast a ballot. *See id.* § 163-166.16(a) (requiring photo identification for in-person voting); N.C. Const. art. VI, §§ 2(4), 3(2) (same). The General Assembly enacted UMOVA in 2011 to regulate

absentee ballots cast by overseas voters. *See* N.C. Sess. Law 2011-182. The General Assembly then added legislation to require photo identification for absentee ballots. *See, e.g.*, N.C. Sess. Law 2019-239, § 1.2(b). When the legislature did so, it did not exempt overseas voters. If our legislature intended to exempt overseas absentee voters from the photo identification requirement, it would have said so explicitly.

But overseas voters are not exempt from this equalization requirement and must provide photo identification to vote. All absentee ballots—cast under either Article 20 or Article 21A—must be transmitted to the relevant county board of elections by placing it in a "sealed container-return envelope." N.C. Gen. Stat. § 163-231(b)(1). This reference to a sealed container-return envelope applies expressly to absentee ballots cast under both Articles 20 and 21A. *Id.* § 163-231(b). To understand what an overseas voter must put in the "sealed container-return envelope," the voter must look at the requirements under Article 20, since Article 21A does not answer the question. *See id.* §§ 163-258.1 to -258.31.

Article 20 is clear that the "sealed container-return envelope" exists, in part, to hold the photo identification of all absentee ballots. The container-return envelope must contain a valid photo identification: "Each container-return envelope returned to the county board with application and voted ballots under this section shall be accompanied by a photocopy of identification . . . ." *Id.* § 163-230.1(f1). The failure to include a photo identification in the container-return envelope is a curable deficiency, but only if the proper identification is received the day before the county canvass. *Id.* § 163-230.1(e). None of the challenged ballots were cured.

Even at a more general level, absentee ballots cast both within and without the United States (Article 20 and Article 21A absentee ballots) are generally treated alike and are all considered absentee ballots:

> "The county board shall report ballots cast during early voting under Part 5 of Article 14A of this Chapter separately from mail-in absentee ballots cast under Article 20 or 21A of this Chapter." *Id.* § 163-132.5G(a1)(4).
>
> "The sealed container-return envelope in which executed absentee ballots have been placed shall be transmitted to the county board of elections who issued those ballots as follows . . . All ballots issued under the provisions of this Article and Article 21A of this Chapter shall be transmitted by one of the following means . . . ." *Id.* § 163-231(b).

The lawful procedure for counting absentee ballots cast under both Article 20 and Article 21A are set out in Article 20. *Id.* § 163-234.

Moreover, Article 21A recognizes that overseas voters will need to provide photo identification. For instance, an overseas voter may apply for an absentee ballot by using "the regular application provided by Article 20." *Id.* § 163-258.7(a). And when overseas voters so apply, they are to be informed of the photo-identification requirement, *id.* § 163-230.1(a)(4), and are to return their ballots with photo identification, *id.* § 163-230.1(f1).

Article 20 also has many general provisions about absentee voting that must apply to overseas voters, even though Article 20 does not say so expressly. For instance, Article 20 explains who may vote in partisan primaries, *id.* § 163-226.1, but Article 21A is silent on the issue. Article 20 imposes felony criminal liability for various misdeeds, *id.* §§ 163-226.3, -237, but Article 21A is silent. The same is true for making various records public records, *id.* § 163-228, imposing a duty on the State Board to report legal violations to district attorneys, *id.* § 163-238, and imposing a duty on county boards to retain applications for absentee ballots, *id.* § 163-233.

As is apparent from the structure of these articles, Article 20 generally applies to all absentee voting, except where Article 21A provides a different rule. *See id.* § 163-239 ("Except as otherwise provided therein, Article 21A of this Chapter shall not apply to or modify the

provisions of this Article [20].”). Article 20 imposes a photo-identification requirement for absentee voters, and Article 21A does not provide a different rule. Thus, absentee ballots under Article 21A must be accompanied with photo identification.

B. Nothing in Article 21A excuses overseas voters from providing photo identification.

The State Board reasoned that Article 21A excused overseas voters from providing photo identification because section 163-258.17(b) established the exclusive means to authenticate the identity of the voter. (A.R. pp 5399-406.) But subsection (b) says no such thing.

That subsection states that the lone “authentication” required “for execution of a document” for overseas voters are the declarations permitted for overseas voters. N.C. Gen. Stat. § 163-258.17(b) (emphasis added); *see id.* § 163-258.4 (describing declaration that acknowledges misstatements are grounds for perjury). Subsection (b) cannot exempt an overseas voter from the photo-identification requirement because photo identification is not the “authentication” of a document—it’s the authentication of the voter’s identity.

This conclusion is easily confirmed by looking at Article 20. Similar to section 163-258.17(b)’s authentication requirement, Article 20 also requires absentee ballots to be authenticated by notarization or a witness. *See id.* § 163-231. Notably, the photo identification requirement is an entirely separate requirement found in another statute within Article 20. *Id.* § 163-230.1. Why? Because photo identification is not an “authentication” of a document.

In the prohibition proceedings at the Supreme Court, Justice Dietz, agreed with Judge Griffin on the merits of this election protest. Am. Order at 2-3, *Griffin* (No. 320P24), available at https://appellate.nccourts.org/orders.php?t=P&court=l&id=444978&pdf=l&a=0&docket=l&dev=l. Describing the Board’s reasoning as “strained,” he explained that the Board’s argument “rely[s] on the bizarre view that voter ID is a means of ‘authenticating’ a ballot, not identifying

the human being who is voting." *Id.* at 3. This argument, he concluded, "does not appear consistent with the text of the applicable state laws. See N.C.G.S. § 163-166.16 & -230.1(f1); N.C.G.S. § 163-239." *Id.* Going further, he explained that the Board's argument "is obviously inconsistent with the law's intent":

> One does not need a law degree to understand that people claiming to be registered North Carolina voters while mailing in absentee ballots from a foreign country are among the key groups of people that the General Assembly (and we the people in our state constitution) intended to be subject to our voter ID law. That law is designed to protect the integrity of our elections. It is certainly easier for foreign actors to meddle in an election from overseas. Exempting voters in foreign countries from voter ID requirements that apply to everyone else simply cannot be squared with the text of the law or the obvious legislative intent.

Id. As Justice Dietz knows, "in construing statutes, the courts should always give effect to the legislative intent. In ascertaining such intent, a court may consider the purpose of the statute and the evils it was designed to remedy, the effect of proposed interpretations of the statute, and the traditionally accepted rules of statutory construction." *State v. Tew*, 326 N.C. 732, 738-39, 392 S.E.2d 603, 607 (1990) (citation omitted).

Before the Board, Justice Riggs argued that Article 21A prohibits a photo identification requirement because section 163-258.17(a) permits the counting of improper ballots cast by overseas voters if the ballots are missing "nonessential" information. *Id.* § 163-258.17(a). The statute gives examples of nonessential requirements that can be ignored: failing to use "paper or envelopes of a specified size or weight." *Id.* Photo identification is a material requirement; it isn't "nonessential." Anyone suggesting that photo identification is immaterial must have missed the last decade and a half of legislation, litigation, and constitutional amendments surrounding photo identification. Notably, not even the Board would adopt Justice Riggs' argument.

C. The fact that the Board issued a rule excusing overseas voters from providing photo identification does not immunize the Board's decision from judicial review.

The State Board also defended its decision to excuse overseas voters from the photo-identification requirement on the grounds that the Board had already issued a rule saying so. (A.R. pp 5403-06.) (citing 8 N.C. Admin. Code § 17.0109(d)). But the General Assembly never delegated to the State Board the power to make the major policy decision of whether to require photo identification from a class of voters. Photo identification was a decision made by the legislature (and even the voters, through a constitutional amendment).

First, the Board cannot issue a valid rule that conflicts with state statutes. In case of conflict, the statute must prevail. And, as just shown, the statutes require photo identification for all absentee voters, including overseas voters.

Second, the General Assembly did not and could not delegate to the State Board the policy decision regarding photo identification for overseas voters. State agencies have only the power actually delegated to them by the General Assembly. *Stam v. State*, 302 N.C. 357, 359-60, 275 S.E.2d 439, 441 (1981). And an administrative agency cannot be "asked to make important policy choices which might just as easily be made by the elected representatives in the legislature." *Adams v. N.C. Dep't of Nat. & Econ. Res.*, 295 N.C. 683, 697-98, 249 S.E.2d 402, 411 (1978). If such legislative power could be delegated, it would be "delegation running riot." *A.L.A. Schechter Poultry Corp. v. United States*, 295 U.S. 495, 553 (1935) (administrative delegation held unconstitutional under non-delegation doctrine); *see also State v. Harris*, 216 N.C. 746, 6 S.E.2d 854, 860 (1940) (same).

When it comes to questions of "widespread emotional and intellectual debate," courts will not assume that the legislature delegated to agencies the discretion to resolve such a "volatile subject." *Stam*, 302 N.C. at 363, 275 S.E.2d at 443. Rather, courts presume that the

legislature would have delegated such important issues only "by express authorization." *Id.* As the Supreme Court of the United States has observed, when an administrative agency makes an extraordinary claim of authority with "political significance," that gives courts a "reason to hesitate" before concluding that the legislature meant to confer the claimed authority. *West Virginia v. EPA*, 597 U.S. 697, 721 (2022). Under the major questions doctrine, courts recognize that the legislature does not "hide elephants in mouseholes." *Whitman v. Am. Trucking Ass'ns*, 531 U.S. 457, 468 (2001) (Scalia, J.). "[S]eparation of powers principles" caution against such unrestrained readings of administrative authority. *West Virginia*, 597 U.S. at 723.

There is no textual indication that the General Assembly ever intended for the State Board to decide whether to require photo identification for any kind of voter, much less overseas voters. And even if there were some "colorable textual basis," *id.*, the major questions doctrine would caution the Court to interpret the statutes against a delegation.

The rule would also collapse under the state constitution. If voters are to be treated differently, there must be a rational basis for differential treatment. *See* N.C. Const. art. I, § 19 ("No person shall be denied the equal protection of the laws . . . ."); *Lloyd v. Babb*, 296 N.C. 416, 439, 251 S.E.2d 843, 858 (1979) ("[A] citizen has a constitutionally protected right to participate in elections on an equal basis with other citizens in the jurisdiction." (quoting *Dunn*, 405 U.S. at 336); *N.C. Bar & Tavern Ass'n v. Cooper*, 901 S.E.2d 355, 373 (N.C. Ct. App.), review allowed, 901 S.E.2d 232 (N.C. 2024); *Askew v. City of Kinston*, 906 S.E.2d 500, 507 (N.C. Ct. App. 2024). But there is no legitimate reason to impose a greater burden—photo identification—on those living in North Carolina than is imposed on those living abroad. There is no reason to think that the General Assembly intended that bizarre, differential treatment, which could violate the state constitution's equal protection clause. *James*, 359 N.C. at 266, 607

S.E.2d at 642 (avoiding constitutional question about out-of-precinct voting by interpreting state statutes not to permit it).

D. Federal law has no bearing on the photo-identification requirement.

Because state law offered by the State Board provides no refuge, the Board also sought to intertwine its reasoning with federal law, citing 52 U.S.C. § 20302. (A.R. pp 5404-05.) But federal law has no application here. The statute on which the Board relies, by its own terms, only applies to "elections for Federal office." *E.g.*, 52 U.S.C. § 20302(a)(1)-(3), (6)-(8), (b)(1), (c).

Ultimately, it would make no sense to require photo identification for voters present in the United States but not for overseas voters. The General Assembly did not require photo identification for one category of voter and not the other. Rather, everyone voting in a North Carolina election, whether voting in person or by any kind of absentee ballot, must submit a photo identification to vote. Therefore, these absentee ballots, submitted under Article 21A, cannot be counted for the contests that are the subject of these election protests.

III. The State Board Manufactured Procedural Defects.

To reject Judge Griffin's protests, the State Board not only misconstrued North Carolina law, but also tried to disqualify the protests on procedural technicalities. It is clear, however, that Judge Griffin's protests complied with all relevant procedural requirements.

A. The protests should not have been filed as voter challenges.

The Board reasoned that it should dismiss the protests because they were untimely voter challenges. (A.R. pp 5394-96.) But the State Board had already rejected its own argument in 2016, and the Supreme Court said the same thing in 2024.

In 2016, an election protest was filed by the Pat McCrory campaign in the governor's race, challenging the eligibility of certain voters to cast ballots in that election. *Bouvier*, 386 N.C. at 5-6, 900 S.E.2d at 843-44. McCrory's opponent, Roy Cooper, argued that the protests should be dismissed because they merely challenged the eligibility of certain voters, and therefore should have been brought as voter challenges instead. *See Bouvier v. Porter*, 279 N.C. App. 528, 542, 865 S.E.2d 732, 741-42, rev'd in part and remanded, 386 N.C. 1, 900 S.E.2d 838 (2024); *In re Consideration of Certain Legal Questions Affecting the Authentication of the 2016 General Election* (N.C. State Bd. of Elections Nov. 28, 2016) [hereinafter 2016 Order], available at https://s3.amazonaws.com/dl.ncsbe.gov/State_Board_Meeting_Docs/2016-11-22/Final_Order_11_28_2016.pdf.

The State Board rejected Cooper's argument. *See* 2016 Order. In an order on Cooper's request to dismiss the protests, the Board explained that an election protest "must prove the occurrence of an outcome-determinative violation of election law, irregularity, or misconduct." *Id.*, ¶ 3. Although an election protest "may not merely dispute the eligibility of a voter," an election protest may challenge a voter's eligibility if the "claims regarding the eligibility of certain voters" are presented "as evidence that an outcome-determinative violation of election law, irregularity, or misconduct has occurred." *Id.*, ¶ 5. Thus, an election board may "discount a ballot cast by an unqualified voter" if an election protest shows "that ineligible voters participated in number sufficient to change the outcome of the election." *Id.*, ¶ 7.

The McCrory election protest spun off collateral litigation that wound up at the Supreme Court as *Bouvier v. Porter*, 386 N.C. 1, 900 S.E.2d 838 (2024). One of the issues in *Bouvier* continued to be whether an election protest can challenge the eligibility of certain voters. The Court affirmed the logic of the Board's 2016 order, explaining that "an election protest may

address any 'irregularity' or 'misconduct' in the election process, including the counting and tabulation of ballots cast by ineligible voters." *Id.* at 4, 900 S.E.2d at 843 (citations omitted). Such ineligible voters, who could be targeted by an election protest, include "nonresidents," who are "categorically ineligible to vote." *Id.* at 4 n.2, 900 S.E.2d at 843 n.2. It also includes people who are not "'legally registered' to vote." *Id.* (quoting N.C. Gen. Stat. § 163-54).

The Board's final decision on Judge Griffin's protests made no effort to reconcile its reasoning with its prior 2016 order or *Bouvier*. *State ex rel. Utilities Comm'n v. Va. Elec. & Power Co.*, 381 N.C. 499, 531-32 & n.2, 873 S.E.2d 608, 629 & n.2 (2022) (Barringer, J., dissenting) (agency acts arbitrarily and capriciously when it departs from recent precedent without a reasoned explanation). It is but another example of the State Board ignoring the law and exercising power untethered to principle.

B. The Board wrongly dismissed the protests for lack of service.

Before addressing the merits of the three categories of protests, the State Board alternatively dismissed Judge Griffin's protests because he did not properly serve the protests on affected voters. The State Board's ruling is wrong because (1) the Board does not have statutory authority to impose a service obligation on protestors and (2), even if it did, Judge Griffin's service satisfied the Board's service demands.

Through rulemaking, the State Board promulgated a protest template that includes a demand that protestors "must serve copies of all filings on every person with a direct stake in the outcome of this protest." 8 N.C. Admin. Code § 02.0111 (the protest-form template). The service can be accomplished by "transmittal through U.S. Mail" and has to "occur within one (1) business day" of filing a protest. *Id.*

But there is no statutory authority for the Board to force protestors to serve copies of protests on affected parties. The State Board claims that it can compel protestors to serve parties because the Board has the power to "prescribe forms for filing protests." (A.R. pp 5373-74 (citing N.C. Gen. Stat. § 163-182.9(c)).) But the power to merely create a "form" for a protest does not include the power to burden protestors with providing notice to affected parties.

That is especially so when the protest statutes explicitly burden someone else with the duty to provide notice to affected parties: the county boards. *See* N.C. Gen. Stat. § 163-182.10(b). The General Assembly requires county election boards to serve interested parties with copies of election protests. *Id.* The General Assembly never authorized the State Board to outsource the county boards' notice obligations to protestors and then penalize protestors for failing to do the county boards' jobs for them. The Board acted far beyond its authority in dismissing protests on service grounds.

Second, Judge Griffin nevertheless complied with the Board's service demand by mailing a postcard by U.S. First-Class Mail to over 60,000 voters at the voters' addresses of record. The postcard stated the following:

> * * * NOTICE * * * [[First Name]] [[Middle Name]] [[Last Name]], your vote may be affected by one of more protests filed in the 2024 general elections. Please scan this QR code to view the protests filings. Please check under the county in which you cast a ballot to see what protest may relate to you . . . . For more information on when your County Board of Elections will hold a hearing on this matter, please visit the State Board of Elections' website link found on the Protest Site (via the QR code).

(A.R. p 3722.)

The State Board criticized Judge Griffin's service efforts as "junk mail" because it was (1) a postcard that (2) didn't announce that the protests were "challenging the voter's eligibility" and (3) used a QR code to provide access to the filed materials. (A.R. pp 5375-81.) The Board

concluded that such postcards did not properly inform voters of the protests and provide them an opportunity to object. (A.R. p 5379.)

The Board's critique of Judge Griffin's service efforts is misplaced. First, the State Board cannot belittle postcards as "junk mail" when the Board itself routinely mails similar cards to voters. *See* N.C. Gen. Stat. § 163-82.8(c) (mailing of voter registration cards); *id.* § 163-82.14(d)(2) (confirming address by mailing cards). Second, the postcard states that "your vote may be affected by one of more protests" and instructs voters to contact their county boards for information on "a hearing on this matter." (A.R. p 3722.) The postcard, thus, notifies voters that their vote is being implicated by a legal proceeding and, appropriately, directs them to find more information on the proceeding. Finally, the Board's distrust of QR codes is belied by the Board's own use of QR codes in the "Voter Photo ID" mailers that it recently distributed across the state. *See* N.C. State Bd. of Elections, Press Release: State Board Launches Photo ID Educational Campaign (Feb. 13, 2024), available at https://www.ncsbe.gov/news/press-releases/2024/02/13/state-board-launches-photo-id-educational-campaign (visit the link "Voter Photo ID Mailer (PDF)").[1]

To be clear, the constitutional standard for notice is that it be "reasonably certain to inform those affected." *Mullane v. Cent. Hanover Bank & Tr. Co.*, 339 U.S. 306, 315 (1950). The standard does not demand perfection. *See id.* at 319 ("We think that under such circumstances reasonable risks that notice might not actually reach every beneficiary are justifiable."). Moreover, Judge Griffin served over 60,000 voters. The interests of each voter "is

[1] The Board's press release boasted that its new voter ID "campaign is designed to reach every corner of North Carolina, including rural and urban areas, in as many ways as possible." *Id.* (emphasis added). The Board posted the "Voter Photo ID Mailer (PDF)" at https://s3.amazonaws.com/dl.ncsbe.gov/Voter%20ID/Voter-ID_Mailer.pdf.

identical with that of a class" and, therefore, "notice reasonably certain to reach most of those interested in objecting is likely to safeguard the interests of all, since any sustained objection would inure to the benefit of all." *Id.* Given that Judge Griffin's service on 60,000 voters replicates the State Board's own methods of notifying voters, the Board had no grounds to claim his method of service was deficient.

C. Judge Griffin timely filed his protests.

In its final decision, the Board mentioned, in passing, that some of Judge Griffin's protests might have been untimely filed and, therefore, could be subject to dismissal. (A.R. p. 5373 n. 4.) This is a baseless and unsupported allegation. The General Statutes are explicit that only "substantial compliance" is required with the filing deadlines for election protests; and Judge Griffin's protests substantially complied with the protest-filing deadline.

Section 163-182.9 sets forth the requirements of an election protest. In addition to a protest being in writing and containing certain information, the section sets forth deadlines for filing a protest. N.C. Gen. Stat. § 163-182.9(b). "If the protest concerns an irregularity other than vote counting or result tabulation, the protest shall be filed no later than 5:00 P.M. on the second business day after the county board has completed its canvass and declared the results." *Id.* § 163-182.9(b)(4)(c).

The next statute, section 163-182.10, dictates an election board's review of whether a protest complies with these requirements. Section 163-182.10 explicitly states that a board shall "determine whether the protest substantially complies with G.S. 163-182.9 and whether it establishes probable cause to believe that a violation of election law or irregularity or misconduct has occurred." *Id.* § 163-182.10(a)(1) (emphasis added). Therefore, for a protest to proceed to a review of its merits, the protest must substantially comply with the 5:00 P.M. filing deadline.

The affidavit of Kyle Offerman, submitted to the Board, established that all of Judge Griffin's protests were submitted via email to the county board before the 5:00 P.M. deadline. (A.R. p 3719 (Offerman Aff. ¶¶ 8-9).) The possibility that some of these protests might have hit election officials' inboxes a few minutes after 5:00 P.M. is irrelevant. The protests would have nonetheless been filed in substantial compliance with the statutory filing deadline.

North Carolina courts have, for decades, explained what is required when a statute demands only substantial compliance with certain requirements. In such statutes, substantial means "[i]n a substantial manner, in substance, essentially. It does not mean an accurate or exact copy." *Graham v. Nw. Bank*, 16 N.C. App. 287, 291, 192 S.E.2d 109, 112 (1972) (cleaned up). In other words, substantial compliance with a requirement is something less than precise satisfaction of the requirement.

This lenient standard is not uncommon; it also appears in litigation. For example, the Court of Appeals applies a substantial compliance standard to the application of the appellate rules: "[T]his court has held that when a litigant exercises 'substantial compliance' with the appellate rules, the appeal may not be dismissed for a technical violation of the rules." *Pollock v. Parnell*, 126 N.C. App. 358, 362, 484 S.E.2d 864, 866 (1997). Thus, a substantial-compliance standard precludes a judicial body from dismissing a filing for mere failure to comply with the technical rules.

A filing made by 5:00 P.M. and received by the board of elections within minutes of that deadline is in "substantial compliance" with the deadline. The filing of a protest within minutes of a deadline would be "essentially" or "in substance" complying with the deadline, even if it is not technically complying with the deadline. Under section 163-182.10(a)(1), any such protest must, as a matter of law, be allowed to proceed to the merits.

IV. No Other Federal Statute Bars the Protests.

At the State Board, Justice Riggs claimed that the Voting Rights Act of 1965 (VRA) prevents the State Board from enforcing the election laws identified in Judge Griffin's protests. That is wrong.

The Voting Rights Act prohibits refusing to count the vote of anyone "who is entitled to vote under any provision of this Act or is otherwise qualified to vote." 52 U.S.C. § 10307(a). Justice Riggs never pointed to any provision of the Act that the election protests purportedly violate. Indeed, the enforcement provision of the VRA exists just to enforce "the Act's comprehensive scheme to eliminate racial discrimination in the conduct of public elections." *Powell v. Power*, 436 F.2d 84, 86 (2d Cir. 1970). Absent racial discrimination, "the Act provides no remedy." *Id.* at 87. As the U.S. Supreme Court has recently explained, the VRA is Congress's effort to bring to "an end to the denial of the right to vote based on race." *Brnovich v. Democratic Nat'l Comm.*, 594 U.S. 647, 655 (2021). There is no basis to suggest that this case involves racial discrimination—it quite obviously doesn't. So the Voting Rights Act is irrelevant.

V. All Protests Filed by Judge Griffin Comport with Substantive Due Process.

Finally, the State Board reasoned it could not provide Judge Griffin any relief because the Substantive Due Process Clause of the U.S. Constitution shielded illegal votes from being challenged after an election had concluded. (A.R. pp 5390, 5399, 5406.) The right to vote is fundamental. But like all fundamental rights, voting is not an absolute right. The U.S. Supreme Court has established a test that balances the right to vote with a state's interest in ensuring election integrity. The protests, which seek to enforce laws that go to the heart of election integrity, satisfy this balancing test.

A. The Anderson-Burdick test.

Voting is a fundamental right. *E.g.*, *Burdick v. Takushi*, 504 U.S. 428, 433 (1992). Yet, the U.S. Supreme Court has recognized that "[t]here must be a substantial regulation of elections if they are to be fair and honest and if some sort of order, rather than chaos, is to accompany the democratic processes." *Storer v. Brown*, 415 U.S. 724, 730 (1974).

The U.S. Supreme Court has established the Anderson-Burdick test to strike a balance between the right to vote and the need for fair elections. *See Libertarian Party of N.C. v. State*, 365 N.C. 41, 47-48, 707 S.E.2d 199, 203-04 (2011) (discussing test). The test requires that a regulation imposing a severe burden on voting be "narrowly drawn to advance a state interest of compelling importance." *Burdick*, 504 U.S. at 434 (internal quotation marks omitted). Severe burdens are defined as invidious restrictions that "are unrelated to voter qualifications." *Crawford v. Marion Cnty. Election Bd.*, 553 U.S. 181, 189 (2008).

The test also accounts for non-severe burdens, which include "'evenhanded restrictions that protect the integrity and reliability of the electoral process itself.'" *Id.* at 189-90 (quoting *Anderson v. Celebrezze*, 460 U.S. 780, 788 n.9 (1983)). These lesser burdens are subject to a flexible balancing standard, which "weigh[s] 'the character and magnitude of the asserted injury'" against "'the precise interests put forward by the State as justifications for the burden imposed by its rule.'" *Burdick*, 504 U.S. at 434 (quoting *Anderson*, 460 U.S. at 789). Such burdens are usually justified by "a State's important regulatory interests." *Timmons v. Twin Cities Area New Party*, 520 U.S. 351, 351 (1997).

B. The protests do not seek to impose severe limitations on voting.

Judge Griffin is not asking the State Board to enforce laws that would severely burden voting.

To start, the North Carolina Constitution establishes that both lawful registration and residency are voter qualifications. N.C. Const. art. VI, §§ 2(1), 3(1). And anybody who wants to vote in North Carolina must be a resident and lawfully registered—no exceptions are allowed. Judge Griffin's request that the State Board enforce this evenhanded pair of voter qualifications cannot, as a matter of law, severely burden the right to vote. *See Crawford*, 553 U.S. at 189-90.

The other law that Judge Griffin asked the State Board to enforce (overseas voters providing photo identification) is enshrined in the General Statutes. Like registration and residency, this requirement is also evenhanded—applying to all voters equally. Indeed, Judge Griffin filed the protest because the State Board unlawfully exempted one demographic of voters —those living overseas—from this universal requirement. The U.S. Supreme Court has already concluded that reasonable photo-identification requirements do not impose "a substantial burden on the right to vote." *Crawford*, 553 U.S. at 191-98.

The State Board never mentions the Anderson-Burdick test anywhere in its order. Rather, in discussing the incomplete-registration protests, the Board defends its dismissal of those protests on the grounds that the individuals "did everything they were told to do to register." (A.R. p 5378.) The Board then relies on the Supreme Court's decisions in *Overton v. Mayor & City Commissioners of City of Hendersonville*, 253 N.C. 306, 116 S.E.2d 808 (1960), and *Woodall v. W. Wake Highway Commission*, 176 N.C. 377, 97 S.E. 226 (1918), for the Board's conclusion that "error by election officials in the processing of voter registration cannot be used to discount a voter's ballot." (A.R. pp 5389-90.) But the decisions in *Woodall* and *Overton* do not hold such. Rather, those decisions reasoned that, because registrars had a duty to issue oaths (while voters had no obligation to take an oath), a registrar's failure of his personal duty could not result in a voter being disqualified. *See Overton*, 253 N.C. at 315, 116 S.E.2d at 815;

Woodall, 176 N.C. 377, 97 S.E. at 232. The voters themselves had taken every step required of them by statute to register.

Here, in contrast, North Carolina statutes impose a duty on all absentee voters to provide photo identification, *e.g.*, N.C. Gen. Stat. § 163-230.1(a)(4), (b)(4), (e)(3), (f1), and on all applicants to provide a drivers license or social security number that validates the applicants' identities, *see id.* § 163-82.4(a)(11), (d), (f). The Board's willingness to allow individuals to vote without satisfying these statutory requirements does not excuse individuals of their duty to comply with them. Moreover, *Woodall* and *Overton* cannot stand for an absolute rule that an election-official's errant instructions can never result in the disqualification of voters because the Court plainly held otherwise in *James*, 359 N.C. at 270, 607 S.E.2d at 644, where the Court disqualified thousands of voters who (unlawfully) voted out of precinct at the instruction of poll workers. *James* even cited to *Burdick* to justify its result, seeing no conflict with this remedy and the Anderson-Burdick framework. *Id.*

Unlike in *Woodall*, *Overton*, and *James*, this is not an instance in which an election official affirmatively instructed a voter to violate the law. This is an instance in which, after the State Board failed to facilitate an individual's compliance with the law, the individual failed to take the steps necessary to become eligible voters as required by the election laws. As courts have often held, "ignorance of the law is no excuse for a failure to comply with the law." *Orange Cnty. v. N.C. Dep't of Transp.*, 46 N.C. App. 350, 377, 265 S.E.2d 890, 908 (1980). It's not

unconstitutional to require the public to be as knowledgeable of election laws as other laws.[2]

C. The laws at issue are tailored to compelling state interests.

Even if the Court were to find that the enforcement of the laws at issue severely burdened the right to vote, North Carolina is well justified in enforcing these laws. The State has an undeniable interest in restricting voting to only those who are eligible to vote, thereby ensuring that the votes of eligible voters are not diluted by ineligible ballots. *Bush v. Gore*, 531 U.S. 98, 105 (2000). Indeed, counting only eligible ballots is the ultimate means of accomplishing the State's "compelling interest in preserving the integrity of its election process." *Purcell v. Gonzalez*, 549 U.S. 1, 4 (2006) (cleaned up). Demanding that only qualified voters—those lawfully registered, residing in North Carolina, and producing photo identification—be allowed to cast a ballot is perfectly tailored to protecting eligible voters from vote dilution.

The State's compelling interest in election integrity also empowers the States to enact protections against possible voter fraud, because such protections assuage the public's "fear [that] legitimate votes will be outweighed by fraudulent ones." *Id.* Moreover, the Anderson-Burdick standard does not demand an "elaborate, empirical verification" of efforts to counteract voter fraud. *Timmons*, 520 U.S. at 364. Rather, the State is free to protect against voter fraud "with foresight rather than reactively," so long as the protections are "reasonable" and don't

[2] Even assuming citizens could blame the State Board for their failure to become eligible to vote, human error by government employees does not automatically create a constitutional violation. *See Pettengill v. Putnam Cnty. R-1 Sch. Dist. (Unionville), Mo.*, 472 F.2d 121, 122 (8th Cir. 1973) (holding no constitutional violation absent "aggravating factors such as denying the right of citizens to vote for reasons of race, or fraudulent interference with a free election by stuffing of the ballot box, or other unlawful conduct which interferes with the individual's right to vote" (citations omitted)); *Powell*, 436 F.2d at 88 (holding that neither the Equal Protection and Due Process Clauses of the Fourteenth Amendment "guarantee against errors in the administration of an election").

"significantly impinge" constitutional rights. *Munro v. Socialist Workers Party*, 479 U.S. 189, 195-96 (1986).

It is no longer debatable that universal photo-identification requirements are a constitutionally acceptable way to guard against impersonation of registered voters. *See Crawford*, 553 U.S. at 194-97 (Stevens, J.); *see also id.* at 209 (Scalia, J., concurring) ("The universally applicable requirements of Indiana's voter-identification law are eminently reasonable.").

It is equally established that North Carolina's requirement that individuals, in order to be qualified to vote, verify their identities via a drivers license or social security number guards against fraudulent registrations. *See Browning*, 522 F.3d at 1168 (describing HAVA's mirror requirement for such information as being "Congress's attempt to … prevent[] voter impersonation fraud"). "'The electoral system cannot inspire public confidence if no safeguards exist … to confirm the identity of voters.'" *Crawford*, 553 U.S. at 194 (quoting *Building Confidence in U.S. Elections* § 2.5 (Sept. 2005)).

CONCLUSION

Judge Griffin respectfully requests that the Court reverse the decision of the State Board and order the State Board to retabulate the vote with the unlawful ballots excluded.

This the 29th day of January, 2025.

/s/ *Craig D. Schauer*
Craig D. Schauer

N.C. State Bar No. 41571
cschauer@dowlingfirm.com
DOWLING PLLC
3801 Lake Boone Trail, Suite 260
Raleigh, North Carolina 27607
Telephone: (919) 529-3351

CERTIFICATE OF SERVICE

The undersigned hereby certifies that a copy of the foregoing document was electronically filed and served this day by email, addressed as follows:

Mary Carla Babb, mcbabb@ncdoj.gov; Terence Steed, tsteed@ncdoj.gov; *Counsel for the North Carolina State Board of Elections*

Ray Bennett, ray.bennett@wbd-us.com; Sam Hartzell, sam.hartzell@wbd-us.com; *Counsel for the Hon. Allison Riggs*

This the 29th day of January, 2025.

/s/ Craig D. Schauer